GPS tracking of company vehicles: privacy notice for drivers

A draft privacy notice for drivers of tracked company vans and cars, with a one-page driver sheet, an in-vehicle notice, and what to check first in Italy and in Germany. For a DPO, HR manager or business owner who needs a working draft.

FOR

Private employers in Italy or Germany whose employees (delivery drivers, sales staff, technicians) drive company vehicles fitted with GPS trackers, and the DPO, HR manager or owner who drafts the notice.

NOT COVERED

Public employers. Tracking through employees' phones or apps, dashcams and event data recorders, tachographs and the transport rules on driving time, telematics used to score driving style, and covert tracking to investigate one person. Self-employed riders on platforms (the employment-status question). Countries other than Italy and Germany. The notice text is in English and needs translating; the in-vehicle notices are in Italian and German. Not confirmed, so left out: the Italian ministry or INL circular of 2016 on GPS (not read on an official site); the INL application forms; the libro unico retention rule cited in the 2011 Garante provision as it applies today; any German state regulator's sticker model; whether German regulators other than Hesse share the Hesse view on section 26 BDSG; how courts treat INL notes. No German decision on Fino matched this topic.

LAW AS OF

GDPR as in force on 7 Nov 2026 (EUR-Lex consolidated text, Fino copy); Law 300/1970 Art. 4 as in force since 8 Oct 2016, Codice privacy Arts. 114 and 171 as in force since 19 Sep 2018 (Normattiva, read 7 Nov 2026); BDSG § 26 and BetrVG § 87 (gesetze-im-internet.de, read 7 Nov 2026); Garante provision on vehicle location systems of 4 Oct 2011 (no. 370), decision of 28 May 2026 (doc. web 10259916), DPIA list provision 467 of 11 Oct 2018; INL notes of 25 Sep 2024 and 16 Feb 2026 (no. 1511); Article 29 Working Party Opinion 2/2017 (WP 249) of 8 Jun 2017; Rhineland-Palatinate data protection regulator page GPS-Ortung (undated, read 7 Nov 2026); Baden-Württemberg data protection regulator Ratgeber Beschäftigtendatenschutz (4th edition, April 2020); DSK DSFA Muss-Liste version 1.1 of 17 Oct 2018; HBDI Handreichung of 25 Apr 2023.

VERSION

1.1, 8 November 2026

How this document works

This is a working draft of the information an employer gives to drivers when company vehicles carry a GPS tracker (a satellite positioning device that records where the vehicle is). It is for delivery drivers, sales staff and other employees who drive company vehicles. The position of a vehicle assigned to a driver is personal data about that driver, so the GDPR (the EU General Data Protection Regulation) applies. The Garante, the Italian regulator, says so even when the system does not show the driver's name, because the employer *"è di regola in condizione di risalire in ogni momento al lavoratore di volta in volta assegnatario di ciascun veicolo"* (Garante, provision of 4 October 2011, point 1.1) (can as a rule trace the worker assigned to each vehicle at any time).

The document has four parts: what to check before tracking matters, the full privacy notice that Article 13 of the GDPR requires, a short information sheet for drivers, and the notice inside the vehicle. Where Italy and Germany differ, the text is split into a section for each country.

Fill in every field in braces. Delete any clause that does not apply, and say why in your own file. A notice never makes unlawful tracking lawful.

Part 1. Check before you switch on tracking

Check before you switch on tracking

The European regulators' position is that *"Vehicle tracking devices are not staff tracking devices"* (Article 29 Working Party, Opinion 2/2017 (WP 249), section 5.7, quoting WP 185). Tracking that turns into constant monitoring of drivers has been fined. **Italy:** GPS on company vehicles has, in the sources read here, been treated as a tool that needs a union agreement or the labour inspectorate's authorisation under Article 4(1) of the Workers' Statute (Law 300/1970). **Germany:** the works council co-decides (section 87(1) no. 6 of the Works Constitution Act), consent does not work, and permanent tracking is, according to state regulators, not allowed as a rule. **Both:** check whether a data protection impact assessment (DPIA, a written risk assessment under Article 35 GDPR) is required; both national lists name tracking of employees. The details for each country follow.

ITALY

Italy: before tracking goes on

Article 4(1) or Article 4(2)?

Article 4 of the Workers' Statute (as in force since 8 October 2016) has two routes. Under Article 4(1), tools that can also monitor workers at a distance *"possono essere impiegati esclusivamente per esigenze organizzative e produttive, per la sicurezza del lavoro e per la tutela del patrimonio aziendale"* (Law 300/1970, Art. 4(1)), and only after a collective agreement with the workplace union representatives (the RSU, *rappresentanza sindacale unitaria*, or the RSA, *rappresentanze sindacali aziendali*) or, without one, the authorisation of the National Labour Inspectorate (Ispettorato nazionale del lavoro, INL). Where the firm has sites in different provinces of one region or in several regions, the agreement may instead be signed by the comparatively most representative unions at national level. Article 4(2) says that this *"non si applica agli strumenti utilizzati dal lavoratore per rendere la prestazione lavorativa e agli strumenti di registrazione degli accessi e delle presenze"* (Law 300/1970, Art. 4(2)) (does not apply to tools the worker uses to do the work, or to tools that record entry and attendance).

When a GPS tracker counts as a tool *for doing the work* is not settled in the sources read for this document. Two official sources point the same way. In a 2026 decision the Garante lists, among the conditions for using the data *"a tutti i fini connessi al rapporto di lavoro"* (for all purposes connected with the employment relationship), that the collection took place after a correct assessment of the nature of the tool and so of whether it falls *"al comma 1 o al comma 2 dell'art. 4 della l. 20 maggio 1970, n. 300 (nel caso di specie, comma 1)"* (Garante, decision of 28 May 2026, doc. web 10259916) (under paragraph 1 or 2; in that case, paragraph 1; point 3.4, on using the data for disciplinary purposes). In a 2026 note on security guards, the labour inspectorate concluded that *"l'installazione di sistemi GPS non possa essere considerato uno strumento necessario alla prestazione lavorativa e pertanto si dovrà seguire la procedura indicata dall'art. 4 comma 1 (accordo sindacale o autorizzazione)"* (INL note 1511 of 16 February 2026). INL notes are guidance to the inspectorate's own offices; Fino has not checked how courts treat them. Record the assessment in writing either way.

LINE	WHAT IT SAYS	YES	NO	?
Art. 4(1) Law 300/1970 Statuto dei lavoratori, Art. 4	The assessment of Article 4(1) or 4(2) is written down. If Article 4(1) applies, a collective agreement with the RSU or RSA (or, for firms with sites in several provinces or regions, the comparatively most representative unions at national level) is signed, or the INL has authorised the tracking; date and reference are on file.	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
INL note of 25 Sep 2024 INL, note of 25 September 2024	If a carrier tracks its own drivers because its client demands it, the employer has checked who is really the controller. The inspectorate tells its offices to refuse authorisation where the employer asking for it is not the controller of the data, and names *"le richieste di installazione di sistemi GPS sui veicoli di proprietà di una società "vettore", che opera per conto di un committente"* (INL note of 25 September 2024) as an example.	☐	☐	☐
Garante 2026 Garante, decision of 28 May 2026, point 3.2	The system is configured as the Garante describes: no continuous monitoring, the position shown to authorised staff only when strictly necessary; as a rule, a way to switch the device off during breaks and outside working hours; pseudonymised data (data that do not name the driver directly) as a rule; storage only where necessary and for proportionate periods, as a rule without monitoring the routes driven.	☐	☐	☐
Garante 2011, point 3.1 Garante, GPS provision of 4 October 2011	Only relevant data are collected. The Garante's 2011 provision lists, besides the vehicle position, *"la distanza percorsa, i tempi di percorrenza, il carburante consumato, nonché la velocità media del veicolo"* (Garante, provision of 4 October 2011, point 3.1) (distance, journey times, fuel used and average speed).	☐	☐	☐
Art. 28 GDPR; Garante 2011 GDPR Art. 28; Garante provision of 4 October 2011	The telematics provider has a processor contract under Article 28 GDPR (a processor works only on the controller's instructions). The 2011 provision already required providers to be appointed processors (point 5.2).	☐	☐	☐
Garante list, items 5 and 3 Garante, DPIA list (provision 467/2018), items 5 and 3	A DPIA has been done or screened. Item 5 of the Garante's DPIA list covers technology at work, *"anche con riguardo ai sistemi di videosorveglianza e di geolocalizzazione"* (Garante, Allegato 1 to provision 467/2018, item 5), from which remote monitoring of employees can follow. Item 3 covers systematic use of data to observe, monitor or control people.	☐	☐	☐
Art. 4(3) Law 300/1970 Statuto dei lavoratori, Art. 4(3); Garante 2011, point 4	Drivers receive the notice in Part 2 before tracking starts, including how the tool is used and how checks are made, and the vehicle carries the sign in Part 4.	☐	☐	☐

The privacy code ties the two laws together: Article 114 of Legislative Decree 196/2003 reads *"Resta fermo quanto disposto dall'articolo 4 della legge 20 maggio 1970, n. 300"* (Codice privacy, Art. 114), and the Garante treats compliance with Article 4 as *"una condizione di liceità del trattamento"* (Garante, decision of 28 May 2026) (a condition for lawful processing). Breaking Article 4(1) is also a criminal offence under Article 171 of the privacy code.

The 2011 Garante provision was adopted before the GDPR and before the 2015 rewrite of Article 4; it refers to the older text of the article. The 2026 decision is the more recent statement. The 2026 decision concerned a public health authority; its configuration points are general guidance from the Garante.

GERMANY

Germany: before tracking goes on

The legal basis: an unsettled point

The Federal Data Protection Act (BDSG) has its own rule for staff data, section 26: staff data *"dürfen für Zwecke des Beschäftigungsverhältnisses verarbeitet werden, wenn dies [...] erforderlich ist"* (BDSG § 26(1)). After a 2023 ruling of the EU Court of Justice (case C-34/21) on a Hesse rule worded the same way, the Hesse regulator wrote that *"[...] § 26 Abs. 1 Satz 1 BDSG sind voraussichtlich nicht mit Art. 88 DS-GVO vereinbar"* (Hesse data protection regulator (HBDI), Handreichung of 25 April 2023, part V) (is probably not compatible with Article 88 GDPR). The text on gesetze-im-internet.de is unchanged. Whether employers can still rely on section 26(1) is therefore unsettled; other bases are the legitimate-interest rule of Article 6(1)(f) GDPR and a works agreement (section 26(4) BDSG, which must respect Article 88(2) GDPR).

LINE	WHAT IT SAYS	YES	NO	?
BetrVG § 87(1) no. 6 Betriebsverfassungsgesetz § 87; Rhineland-Palatinate data protection regulator, GPS-Ortung	If there is a works council, it has agreed. It co-decides on the *"Einführung und Anwendung von technischen Einrichtungen, die dazu bestimmt sind, das Verhalten oder die Leistung der Arbeitnehmer zu überwachen"* (BetrVG § 87(1) no. 6). The Rhineland-Palatinate regulator says the works council must be involved before GPS is introduced and suggests a works agreement on purpose, data, access and storage periods.	☐	☐	☐
Rhineland-Palatinate and Baden-Württemberg regulators Rhineland-Palatinate data protection regulator, GPS-Ortung	Tracking does not rest on consent. The Rhineland-Palatinate regulator says a company's tracking system *"kann nicht auf die Einwilligung der Beschäftigten gestützt werden"* (Rhineland-Palatinate data protection regulator, GPS-Ortung); the Baden-Württemberg regulator says the same (Ratgeber Beschäftigtendatenschutz, April 2020, case 8 "Auf Schritt und Tritt", p. 37).	☐	☐	☐
Rhineland-Palatinate regulator Rhineland-Palatinate data protection regulator, GPS-Ortung	The system cannot be used to control drivers permanently. *"Ortungssysteme, mit denen Beschäftigte dauerhaft kontrolliert werden können, sind grundsätzlich unzulässig"* (Rhineland-Palatinate data protection regulator, GPS-Ortung).	☐	☐	☐
Baden-Württemberg regulator Baden-Württemberg data protection regulator, Ratgeber Beschäftigtendatenschutz (April 2020)	The vehicle is located only when the planning needs it. *"Eine routinemäßige Ortung eines Fahrzeugs ist unzulässig, wenn sie unabhängig von den notwendigen Planungen erfolgt"* (Baden-Württemberg data protection regulator, Ratgeber Beschäftigtendatenschutz, case 8 "Auf Schritt und Tritt", p. 38).	☐	☐	☐
Rhineland-Palatinate regulator Rhineland-Palatinate data protection regulator, GPS-Ortung	No alerts when a driver leaves or stays too long in a defined zone. The Rhineland-Palatinate regulator says such a system would create permanent pressure of control and is not allowed (*"ebenfalls unzulässig"*).	☐	☐	☐
Rhineland-Palatinate regulator Rhineland-Palatinate data protection regulator, GPS-Ortung	No tracking during permitted private use. *"Eine Ortung während der erlaubten privaten Nutzung eines Dienstfahrzeugs oder eines Smartphones ist ebenfalls unzulässig"* (Rhineland-Palatinate data protection regulator, GPS-Ortung). If the system also keeps the logbook, drivers can choose a paper logbook instead.	☐	☐	☐
Rhineland-Palatinate regulator Rhineland-Palatinate data protection regulator, GPS-Ortung	Where only goods are tracked, location data are not linked to the drivers, and functions such as speed recording and stop durations are switched off technically.	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
DSK Muss-Liste, items 8 and 4 DSK, DSFA Muss-Liste for the non-public sector, version 1.1 of 17 October 2018	A DPIA has been done or screened. The German regulators' DPIA list for private bodies names *"Geolokalisierung von Beschäftigten"* (geolocation of employees) as a typical case of item 8: large-scale processing of data on employee behaviour that can be used to assess their work in a way that has legal effects on them or affects them significantly in another way. Item 4 covers *"Umfangreiche Verarbeitung von personenbezogenen Daten über den Aufenthalt von natürlichen Personen"* (DSK DSFA Muss-Liste, version 1.1, item 4) (large-scale processing of data on where people are).	☐	☐	☐
Art. 28 GDPR GDPR Art. 28	The telematics provider has a processor contract under Article 28 GDPR.	☐	☐	☐

Targeted tracking of one driver is a different case. The Rhineland-Palatinate regulator allows tracking aimed at behaviour only where there are well-founded, clearly documented indications of a criminal offence or a serious breach of contract, and only within proportionality. That case is outside this template.

Part 2. The full privacy notice for drivers

Each item starts with what Article 13 requires and what to write, then gives the clause text. The clause text speaks to the driver as "you".

Title to print: Privacy notice: GPS tracking of company vehicles, for drivers. Version DATE.

1. Who is responsible

Article 13(1)(a) requires *"the identity and the contact details of the controller"*. The controller is the organisation that decides why and how the tracking is done. Write the employer's legal name (for example, Example company Ltd), postal address and a contact that is answered. If a client company in fact decides on the tracking, settle who is controller first (see the Italian check on carriers).

1 The controller for the tracking of company vehicles is LEGAL NAME OF THE EMPLOYER, POSTAL ADDRESS, PHONE, EMAIL.

Art. 13(1)(a) GDPR

2. The data protection officer

Article 13(1)(b) requires *"the contact details of the data protection officer, where applicable"*. A data protection officer (DPO) is the person an organisation appoints to advise on and monitor data protection.

2 You can contact our data protection officer at NAME OR ROLE, POSTAL ADDRESS, EMAIL.

Art. 13(1)(b) GDPR

3. Purposes and legal basis

Article 13(1)(c) requires *"the purposes of the processing [...] as well as the legal basis for the processing"*. Write each purpose separately. The Garante's 2011 provision gives examples of legitimate aims: logistics (giving the driver timely instructions), working out driving time for pay, charging costs to customers, and fleet management and maintenance (point 2.2). The legal basis is the GDPR rule that allows the processing; write the one your assessment chose.

3.1 The vehicle you drive, VEHICLE TYPE OR REGISTRATION, has a GPS tracker. We use it for these purposes: PURPOSE 1; PURPOSE 2; PURPOSE 3.

Art. 13(1)(c) GDPR

Examples: planning deliveries and sending you to the nearest urgent job; finding the vehicle after theft or an accident; fleet maintenance based on distance driven.

3.2 The legal basis is LEGAL BASIS.

Art. 13(1)(c) and 6(1) GDPR

For example: Article 6(1)(f) GDPR, our legitimate interest; or, in Germany, a works agreement under section 26(4) BDSG.

ITALY

Italy: add to the purposes clause

3.3 (IT) The tracker was installed under UNION AGREEMENT OR INL AUTHORISATION, WITH DATE AND REFERENCE, as Article 4(1) of Law 300/1970 requires.

Art. 4(1) Law 300/1970; Art. 114 Codice privacy

Write either the agreement with the workplace union representatives and its date, or the authorisation of the Ispettorato nazionale del lavoro with its office, reference number and date.

GERMANY

Germany: add to the purposes clause

3.3 (DE) The tracker is not used for permanent, general monitoring of your behaviour or performance. Its use is governed by WORKS AGREEMENT AND ITS DATE.

BetrVG § 87(1) no. 6; Rhineland-Palatinate data protection regulator, GPS-Ortung

Keep the second sentence only if there is a works agreement on GPS tracking.

4. Legitimate interests

Article 13(1)(d) applies only where the legal basis is Article 6(1)(f). It requires *"the legitimate interests pursued by the controller or by a third party"*. Write the concrete interest behind each purpose.

4 Our legitimate interests are LEGITIMATE INTERESTS.

Art. 13(1)(d) GDPR

For example: organising deliveries efficiently, protecting vehicles and loads against theft, and the safety of drivers who work alone.

5. What is recorded, how often, and when

Article 13 does not list this item by name, but the purposes and the retention period cannot be understood without it, and both national sources ask for it. The Garante's 2011 provision says drivers must receive the Article 13 information together with details on *"la natura dei dati trattati e sulle caratteristiche del sistema"* (Garante, provision of 4 October 2011, point 4) (the kind of data and the features of the system). The Baden-Württemberg regulator says drivers must be told, *"etwa durch eine Benachrichtigung oder eine Leuchtanzeige am Gerät"* (Baden-Württemberg data protection regulator, Ratgeber Beschäftigtendatenschutz, case 8 "Auf Schritt und Tritt", p. 38), when tracking takes place (for example by a notification or a light on the device).

Write the recording interval. In the 2026 Italian case, the Garante found an interval of 60 seconds *"particolarmente ristretto"* (Garante, decision of 28 May 2026) (particularly short); the employer had since moved to 15 minutes and switched off real-time tracking, and the Garante ordered no further measures (2026/IT/074). That is one case, not a fixed rule.

5 The tracker records DATA RECORDED. It records the position every INTERVAL, WHEN RECORDING RUNS. Option A: Real-time position is not shown. Option B: The current position is shown only to ROLES, only when REASON. You can switch off location recording WHEN DRIVERS CAN SWITCH OFF by HOW TO SWITCH OFF. You can see that recording is on: HOW DRIVERS CAN SEE THAT RECORDING IS ON.

Art. 13(1)(c) GDPR; Garante 2011 point 4; Garante 2026 point 3.2

Data recorded: choose from the position of the vehicle, distance driven, journey times, fuel used and average speed. Interval, for example: 15 minutes. When recording runs, for example: only during working hours, or only when the ignition is on. Keep option A or option B; a reason, for example: an urgent job must be assigned. Switching off, for example: during breaks, outside working hours or during permitted private use, with the privacy button on the dashboard. If drivers cannot switch off location recording, delete this sentence and say so, and record why in your own file (the Garante expects it as a rule).

Say how drivers are told that recording is on: a light on the device is one option; delete if there is none.

On private use, the Article 29 Working Party, the predecessor of the EDPB, wrote that *"the employee in principle should have the option to temporarily turn off location tracking when special circumstances justify this turning off, such as a visit to a doctor"* (WP 249, section 5.7), and that *"it is unlikely that there is a legal basis for monitoring the locations of employees' vehicles outside agreed working hours"* (WP 249, section 5.7).

6. Who sees the data

Article 13(1)(e) requires *"the recipients or categories of recipients of the personal data, if any"*. Write the roles inside the company that may see location data and every outside recipient, starting with the telematics provider. The Garante's 2011 provision limits access to staff who need it for their tasks, for example logistics, warehouse and fleet maintenance, or human resources (point 5.1).

6 Location data are seen only by ROLES WITH ACCESS. The system is run by NAME OF THE TELEMATICS PROVIDER, which acts on our instructions under a processing contract. We pass data to others only WHEN DATA ARE PASSED ON.

Art. 13(1)(e) and 28 GDPR

For example: roles such as the dispatch team and the fleet manager; data passed on only when the law requires it, to the police after a theft, or to our insurer after an accident.

7. Transfers outside the EU

Article 13(1)(f) requires, *"where applicable"*, the fact of a transfer to a country outside the EU and the safeguard used. Check where the provider's servers and support staff are.

7 Option A: Location data are stored in the EU and are not transferred outside it. Option B: PROVIDER stores data in COUNTRY. The transfer is based on ADEQUACY DECISION OR STANDARD CONTRACTUAL CLAUSES; you can get a copy from CONTACT.

Art. 13(1)(f) GDPR

Keep option A or option B and delete the other.

8. How long data are kept

Article 13(2)(a) requires *"the period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period"*. Write one period per purpose. The Garante requires retention periods to be set *"tenendo conto di ciascuna delle finalità in concreto perseguite"* (Garante, provision of 4 October 2011, point 3.2) (for each purpose actually pursued), and says location data used only to perform a given service must be deleted or anonymised once it is done. The Rhineland-Palatinate regulator suggests fixing storage periods in the works agreement.

8 Position data are deleted after PERIOD for PURPOSE 1, and after PERIOD for PURPOSE 2. Data needed for PAYROLL OR CUSTOMER INVOICES are kept for PERIOD SET BY LAW under LAW ON THOSE RECORDS. If an incident is under investigation, the relevant data are kept until END POINT FOR KEEPING DATA.

Art. 13(2)(a) GDPR

Keep payroll or invoice data only in the form and for the period the law on those records requires, and name that law. End point, for example: the investigation is closed or legal proceedings end.

9. No use for other purposes

Article 13(3) requires new information before data are used for a purpose not stated here. The national rules on using tracking data against drivers differ, so write the country clause that applies.

ITALY

Italy: use of tracking data in the employment relationship

Article 4(3) of the Workers' Statute allows data collected under Article 4(1) and 4(2) to be used for all purposes connected with employment, but only if the worker has received *"adeguata informazione delle modalità d'uso degli strumenti e di effettuazione dei controlli"* (Law 300/1970, Art. 4(3)) and the privacy code is respected. In the 2026 case, the Garante found that location data collected in breach of the data protection rules had then been used in a disciplinary procedure without all the conditions of Article 4(3) being met (2026/IT/074). Write what the employer has decided and any limit in the agreement or authorisation.

9 (IT) Option A: Tracking data may be used for purposes connected with your employment, including disciplinary matters, only within the limits of this notice and of the agreement or authorisation. Option B: Tracking data are not used to assess your work or for disciplinary matters. Checks are made HOW AND WHEN CHECKS ARE MADE.

Art. 4(3) Law 300/1970

Keep option A or option B and delete the other. Checks, for example: only after a complaint from a customer, by the fleet manager, with a record of each check.

GERMANY

Germany: use of tracking data in the employment relationship

The Baden-Württemberg regulator advises that, where a system could allow permanent control of behaviour and performance, the employer excludes such control by a works agreement or binding internal rules (Ratgeber Beschäftigtendatenschutz, case 8 "Auf Schritt und Tritt", p. 38). Write that exclusion.

9 (DE) Tracking data are not used for permanent or general control of your behaviour or performance. Any other use is limited to WHAT THE WORKS AGREEMENT ALLOWS. If we want to use the data for another purpose, we will tell you first.

Art. 13(3) GDPR; Baden-Württemberg data protection regulator, Ratgeber Beschäftigtendatenschutz, case 8 "Auf Schritt und Tritt", p. 38

10. Your rights

Article 13(2)(b) requires the existence of the rights of access, rectification, erasure, restriction, objection and data portability. Write those that apply. Where the basis is legitimate interest, the right to object (Article 21) applies. Data portability (Article 20) applies only to processing based on consent or a contract. A reply is due within one month (Article 12(3)).

10 You have the right to ask for access to your location data (Article 15), to have wrong data corrected (Article 16), and to ask for erasure (Article 17) or restriction (Article 18). You can object at any time, on grounds relating to your particular situation, to processing based on our legitimate interest (Article 21). If the basis is consent or a contract, you also have the right to data portability (Article 20). Write to CONTACT. We reply within one month.

Art. 13(2)(b), 12(3), 15 to 21 GDPR

Delete the portability sentence unless the legal basis is consent or a contract.

11. Consent

Article 13(2)(c) applies only where the basis is consent. Vehicle tracking of staff does not normally rest on consent (see Part 1). The one case the Rhineland-Palatinate regulator mentions is using the tracker to keep the logbook, which needs the driver's express consent and a paper alternative.

11 Option A: We do not rely on your consent for tracking. Option B, for an optional use based on consent such as the electronic logbook: You can withdraw your consent at any time by writing to CONTACT and keep a paper logbook instead. Withdrawal does not affect earlier processing.

Art. 13(2)(c) GDPR

Option A is the normal case. Keep option B only for a use that really rests on consent.

12. The right to complain

Article 13(2)(d) requires *"the right to lodge a complaint with a supervisory authority"*, the national data protection regulator. Under Article 77 a person may complain in particular in the country where they live, work, or where the infringement took place.

12 If you think we use your data unlawfully, you can complain to a data protection supervisory authority, in particular in the EU country where you live, where you work, or where the infringement took place. The authority for our company is NAME AND ADDRESS OF THE AUTHORITY.

Art. 13(2)(d) and 77 GDPR

ITALY

Italy: the authority

The Garante's complaint page gives the address *Garante per la protezione dei dati personali, Piazza Venezia, 11 - 00187 Roma* and the certified email (PEC) address *protocollo@pec.gpdp.it* (Garante, complaint page).

GERMANY

Germany: the authority

For private employers the competent authority is the regulator of the federal state (Land) where the employer is established; the federal commissioner keeps a list (federal commissioner's list).

13. Whether the data are required

Article 13(2)(e) requires saying whether the data are required by law or contract, and what happens if they are not provided. Write the practical position.

13 The tracker is part of the vehicle we provide for your work. If the tracker is disabled OUTSIDE THE CASES IN CLAUSE 5, OR: AT ANY TIME, CONSEQUENCE.

Art. 13(2)(e) GDPR

For example: the vehicle cannot be dispatched to jobs.

14. Automated decisions

Article 13(2)(f) requires saying whether there is automated decision-making, including profiling (Article 22). If the system scores drivers, assigns jobs automatically or ranks them, describe the logic and its effect. The Garante fined two delivery platforms over the processing of their riders' data, with Articles 13, 22 and 88 among the breaches (platform riders, outside this template's scope) (2021/IT/043, 2021/IT/038).

14 Option A: We do not use tracking data to make automated decisions about you or to profile you. Option B: AUTOMATED DECISION AND ITS LOGIC.

Art. 13(2)(f) and 22 GDPR

Keep option A or option B. In option B, describe the automated decision, the logic involved, its significance and its consequences for the driver, and how to ask for human review.

Part 3. Short information sheet for drivers

Hand this one-page summary to each driver with the full notice, and keep a copy of the hand-over. It does not replace Part 2.

QUESTION	ANSWER FOR DRIVERS
Is my vehicle tracked?	Yes. Vehicle REGISTRATION has a GPS tracker run by PROVIDER for EMPLOYER.
Why?	PURPOSES, IN ONE LINE EACH
What is recorded?	DATA RECORDED, every INTERVAL, WHEN RECORDING RUNS.
Can someone watch me live?	WHO CAN SEE IT LIVE, AND WHEN
Can I switch it off?	WHEN AND HOW DRIVERS CAN SWITCH OFF, OR "NO" AND WHY. HOW DRIVERS CAN SEE THAT RECORDING IS ON.
Who sees the data?	ROLES and our provider, which works on our instructions.
How long are data kept?	PERIOD PER PURPOSE
Can data be used against me?	ANSWER FROM CLAUSE 9
What are my rights?	Access, correction, erasure, restriction and objection. Write to CONTACT. You can also complain to a data protection authority.
Where is the full notice?	WHERE THE FULL NOTICE IS

Say how drivers are told that recording is on: a light on the device is one option; delete if there is none.

Part 4. The notice inside the vehicle

The Article 29 Working Party wrote that drivers must be told clearly that a tracker is installed and that *"Preferably such information should be displayed prominently in every car, within eyesight of the driver"* (WP 249, section 5.7).

ITALY

Italy: the vehicle sticker

The Garante's 2011 provision, adopted before the GDPR, requires employers to place inside the vehicle stickers bearing the words *"VEICOLO SOTTOPOSTO A LOCALIZZAZIONE"* (Garante, provision of 4 October 2011, point 4) (vehicle subject to location tracking), or other clearly visible notices, and offers a model in its annex 1.

VEICOLO SOTTOPOSTO A LOCALIZZAZIONE

Questo veicolo è dotato di un sistema di localizzazione (GPS).

Titolare del trattamento: RAGIONE SOCIALE, CONTATTO

Informativa completa: DOVE TROVARLA

GERMANY

Germany: the in-vehicle notice

The German sources read for this document do not give a sticker model. They ask that drivers know when tracking is active: the Rhineland-Palatinate regulator says drivers must be told, *"etwa durch eine Benachrichtigung oder eine entsprechende Anzeige"* (Rhineland-Palatinate data protection regulator, GPS-Ortung), when tracking happens; otherwise it is prohibited secret surveillance. The text below follows the WP 249 suggestion.

Fahrzeugortung (GPS)

Dieses Fahrzeug ist mit einem GPS-Ortungssystem ausgestattet.

Verantwortlich: NAME DES UNTERNEHMENS, KONTAKT

Ortung aktiv: ZEITRAUM DER ORTUNG. Anzeige:

WIE DIE ORTUNG ANGEZEIGT WIRD.

Ausführliche Informationen: FUNDORT

> *Say how drivers are told that recording is on: a light on the device is one option; delete the line if there is none.*

What regulators decided

Fined, and Article 13 among the breaches

A delivery driver found a GPS tracker in the engine compartment of his truck, installed without information: €50,000, Garante per la protezione dei dati personali (Italy), 2022; Articles 5, 6, 13, 28 and 35 among the breaches (2022/IT/185). A company tracked technicians' location continuously and excessively, with information given orally only (a phone app, not a vehicle tracker): €20,000, Italian Data Protection Authority (Garante), 2023; Articles 5, 9, 13 and 88 among the breaches (2023/IT/052).

Fined, and Article 88 among the breaches

A Ligurian health authority's vehicle geolocation produced almost continuous monitoring of employees, and the data were used for disciplinary purposes: €6,000, Italian Data Protection Authority (Garante), 2026; Articles 5, 6, 25, 35 and 88 among the breaches (2026/IT/074).

Decision data come from enforcementtracker.com (provided by CMS) and GDPRhub (noyb), under CC BY-NC-SA 4.0 (https://creativecommons.org/licenses/by-nc-sa/4.0/), and from regulators' own publications; each decision page on Fino carries the details.

These are Italian cases. Fino has not yet found a German decision on its pages on vehicle tracking of employees.

Sources

GDPR, Articles 6, 12, 13, 15 to 22, 28, 35, 77, 88 (Fino copy of the EUR-Lex text) • Used for: Every Article 13 item, rights, complaint, processors, DPIA, employment rule

Law 300/1970 (Statuto dei lavoratori), Article 4, Normattiva • Used for: Italy: Article 4(1) and 4(2) routes, information and use of data

Legislative Decree 196/2003 (Codice privacy), Article 114, Normattiva • Used for: Italy: link between privacy law and Article 4

Legislative Decree 196/2003 (Codice privacy), Article 171, Normattiva • Used for: Italy: criminal penalty

Garante, provision on vehicle location systems in employment, 4 October 2011 (doc. web 1850581) • Used for: Italy: personal data, relevant data, retention per purpose, access, processors, sticker

Garante, decision of 28 May 2026 (doc. web 10259916) • Used for: Italy: Article 4(1) or 4(2) assessment, configuration measures, 60-second interval

Garante, DPIA list, Allegato 1 to provision 467 of 11 October 2018 (doc. web 9059358) • Used for: Italy: DPIA items 3 and 5

Garante, complaint page (doc. web 4535524) • Used for: Italy: complaint address

Ispettorato nazionale del lavoro, note 1511 of 16 February 2026 • Used for: Italy: GPS not a work tool in the security-guard case

Ispettorato nazionale del lavoro, note of 25 September 2024 • Used for: Italy: carriers tracking for a client

Article 29 Working Party, Opinion 2/2017 on data processing at work (WP 249) • Used for: EU: vehicle tracking, private use, in-vehicle notice

BDSG § 26, gesetze-im-internet.de • Used for: Germany: employment rule, works agreements

BetrVG § 87, gesetze-im-internet.de • Used for: Germany: works council co-determination

HBDI (Hesse), Handreichung on employee data after CJEU case C-34/21 (25 April 2023) • Used for: Germany: doubt over section 26(1) BDSG

Rhineland-Palatinate data protection regulator, GPS-Ortung • Used for: Germany: consent, permanent control, private use, geofencing, notification, works council

Baden-Württemberg data protection regulator, Ratgeber Beschäftigtendatenschutz (April 2020) • Used for: Germany: consent, routine tracking, notification, excluding performance control

DSK, DSFA Muss-Liste for the non-public sector, version 1.1 (17 October 2018) • Used for: Germany: DPIA items 4 and 8

Federal Commissioner for Data Protection (BfDI), list of state data protection authorities • Used for: Germany: competent authority